

25STCV26342 25STCV26342

County: los-angeles

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Case Number: 25STCV26342 Hearing Date: August 6, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 6, 2026

CASE NUMBER

25STCV26342

MOTIONS

Demurrer to First Amended Complaint;

Motion to Strike Portions of First Amended Complaint

MOVING PARTY

Defendant Barbara T. Ross

OPPOSING PARTY

Plaintiff Hairo A.

Hernandez

MOTION

Plaintiff Hairo A.

Hernandez ("Plaintiff") alleges Defendant Barbara T. Ross ("Defendant") agreed to sell real property to Plaintiff and then reneged on the agreement. Defendant demurs to Plaintiff's first amended complaint and moves to strike portions of that complaint. The Court notes Plaintiff did not file an opposition to the motions until August 3, 2026 with no indication as to when it was served. Counsel for Plaintiff asserts the late filing resulted from an inadvertent calendaring error.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within

the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Plaintiff's Causes of Action:

Breach of Contract, Promissory Estoppel, and Repudiation

Plaintiff alleges he

loaned Defendant money "on the condition that [Defendant] pay [Plaintiff] back within agreed upon timeframes as well as sell the real property located at 10766 Ayres Avenue, Los Angeles, CA 90064 . . . once [Defendant] became the

owner” (First Amended Complaint, ¶ 10.) Plaintiff, for example, does not allege any breach of any agreement resulted from Defendant failing to repay a loan at any time. (See, e.g., id., ¶¶ 26, 32, 38 [“Defendant[] breached the contracts by refusing to sell Plaintiff the property once [Defendant] held title to it”]; see also ¶¶ 48, 65, 70.) Thus, according to Plaintiff, the gravamen of his claims Defendant breached any agreement is Defendant not selling the subject property upon Defendant obtaining title to it. “[A] condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises.” (Platt Pac. v. Andelson (1993) 6 Cal.4th 307, 313.)

Defendant requests judicial notice of Estate of Douglas C. Andrews (Super. Ct. L.A. County, 2025, No. 25STPB03649), which is a pending probate proceeding. The property at issue in this case is part of the estate in the probate proceeding. (Request for Judicial Notice, Exhibit B.) Plaintiff essentially contends that is of no moment. Yet, nowhere in his complaint does Plaintiff allege, nor does he argue in opposition, Defendant does hold title to the subject property. As such, pursuant to the terms of the parties’ agreements, Plaintiff has not alleged Defendant has an obligation at present to sell the property to him. Even setting aside any issue of ownership of the subject property, Plaintiff has not alleged facts explaining how Defendant has somehow otherwise failed to perform pursuant to the agreements.

Accordingly, the Court sustains the demurrer with leave to amend to the first through fifth and eighth through tenth causes of action.

Sixth Cause of Action: Intentional Misrepresentation

A plaintiff must allege fraud with particularity. “This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect.” (Wilhelm v.

Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) To state a claim for promissory fraud, Plaintiff must allege specific factual circumstances beyond contract breach, which reflect Defendant's contemporaneous intent not to perform. (Hills Transportation Co. v. Southwest Forest Ind., Inc. (1968) 266 Cal.App.2d 702, 707.)

In this regard,
Plaintiff alleges Defendant "intentionally misrepresented that [Defendant] would sell the home to Plaintiff" (First Amended Complaint, ¶ 52.) Plaintiff does not allege any specific facts to show Defendant did not intend to sell the house to him at the time Defendant made this promise.

Accordingly,
Plaintiff fails to state a claim for promissory fraud. Nonetheless, the Court will afford Plaintiff the opportunity to amend this claim.

Seventh Cause of Action: Negligent
Misrepresentation

Plaintiff alleges Defendant represented to him Defendant would sell the home to him, but Defendant failed to do so. (First Amended Complaint, ¶¶ 57-59.)
There is no cause of action for negligent false promise. (Tarmann v. State Farm Mutual Automobile Insurance Company (1991) 2 Cal.App.4th 153, 159.)

Accordingly,
Plaintiffs' claim for negligent misrepresentation fails as a matter of law.

Motion to Strike

As the Court sustains the demurrer to the complaint in its entirety, the Court places the motion to strike off calendar as moot.

CONCLUSION AND ORDER

Defendant's
demurrer to the seventh cause of action is sustained without leave to

amend. Defendant's demurrer is otherwise sustained with leave to amend. Plaintiff is to file an amended complaint within 20 days.

Sustaining the demurrer renders the motion to strike moot.

Defendant is ordered to provide notice of the Court's ruling and to file proof of service of same.